

Halvorsen Aviation Advisory

MEMORANDUM

To: Frontier Airlines, Office of the General Counsel
From: Airline Practice, Halvorsen Aviation Advisory
Subject: Frontier's 2025 exposure under the chronic delay rule, 14 CFR 399.81
Prepared under: Practice Standard RS-4

In 2025 no Frontier flight was chronically delayed for more than four consecutive months, so the Department could not cite any Frontier flight under 14 CFR 399.81, though two flights reached four consecutive chronic months and one of them finished two late arrivals short of a fifth.

The associate's working sheet counts 337 Frontier flight-months on BTS's 2025 chronically-delayed-flight lists. That figure is correct as a count of listings and it is not a count of violations; the rest of this memo explains the difference.

Could the Department cite any of our flights?

No. Section 399.81(c)(4) makes the violation the holding out of a chronically delayed flight for *more than four* consecutive one-month periods, so a flight becomes citable in its fifth consecutive chronic month. Across 2025 Frontier operated 333 chronically delayed flight-months on 582 flight-months recorded in the register. The longest unbroken run any single flight achieved was four months. No flight reached five, in any market, in any part of the year, and the two four-month runs both sit well inside the year, so nothing is being cut short at January or December. The citable column of exposure_register.csv is therefore 'no' on every row.

Flights to watch, in order of passengers

#	Flight	Market	Chronic months	Passengers	Extra late arrivals
1	4818	ATL-JFK	2025-05 to 2025-08	111,871	13
2	4602	ATL-EWR	2025-04 to 2025-07	98,799	2

1. ATL-JFK, flight 4818 (111,871 passengers). Chronically delayed 2025-05 through 2025-08 at 54.8%, 66.7%, 58.1%, 54.8% of arrivals late in the four months. In 2025-09 it operated 30 times with 3 late arrivals, 10.0%. It needed 16 to be chronically delayed again, so **13 more late arrivals** in 2025-09 would have made it citable.

2. ATL-EWR, flight 4602 (98,799 passengers). Chronically delayed 2025-04 through 2025-07 at 66.7%, 81.0%, 60.0%, 80.6%. In 2025-08 it operated 31 times with 14 late arrivals, 45.2% — against the 16 needed. **2 more late arrivals** in that month and this flight would have been citable. It is the closer of the two to the line by a wide margin and it is the one we would retime first on operational grounds; the fix order above is by passengers, as RS-4 requires.

Does our replay return everything the standard checks it against?

Yes, in full, with one item disclosed below. RS-4 section 2 admits a replay only if it returns, for the Department's JetBlue order, each cited flight, its consecutive months and the operations the Department counts in the violation months. Run on the BTS on-time files for those months, our replay returns all four flights, all four spans and all four operation counts:

Flight	Market	Months in the order	Run	DOT operations	Replay
2585	JFK-RDU	2022-06 to 2022-10	5	31	matched
1802	FLL-JFK	2023-06 to 2023-10	5	30	matched

384	MCO-JFK	2023-06 to 2023-10	5	27	matched
460	FLL-BDL	2023-06 to 2023-11	6	57	matched

Nothing is missed. We disclose, as RS-4 requires, that on the same months the replay also identifies FLL-BOS and MCO-LGA as chronically delayed beyond four consecutive months. The order does not charge them. A consent order enumerates the violations the Department chose to pursue and is not an exhaustive audit, so we do not read this as a defect in the replay, but it is a difference and we record it.

We also attempted to reconcile the replay against BTS's twelve published 2025 monthly lists. We established that a listed row is one flight number at one scheduled departure time and that BTS applies a thirty-minute band around that time, and on that basis we reproduce 284 of BTS's 337 Frontier rows exactly on both operations and late arrivals. We could not reproduce the remaining 53, which differ by one or two operations in both directions. Under RS-4 section 2 a published tabulation is not an admissibility test, and we therefore use the lists as corroboration only and do not present them as a check the replay has passed.

The two views already circulating

The associate's working sheet. The sheet reads exposure off BTS's monthly lists and reports 337 Frontier flight-months. Carried through to a conclusion, it would have us report **no citable flight**: no Frontier flight number appears on five consecutive lists. On that answer the sheet agrees with us. It differs on what it puts at the top and on the shape of the exposure. Its top row is **ATL-JFK flight 4818**, which appears on **5 of the twelve lists** — months 05, 06, 07, 08, 12. Read as five months of exposure, that flight looks citable. It is not. Four of those listings are consecutive, May through August; the fifth is December, four months later and unconnected to the run. On our replay ATL-JFK flight 4818 is a flight to watch with a four-month run and needs 13 more late arrivals in 2025-09 to become citable. The sheet is counting listings; the rule counts consecutive months.

The deeper difference is the unit. BTS lists a flight number at a scheduled departure time; 399.81(c)(3) treats as one flight all of a carrier's flights in a market whose scheduled departures fall within thirty minutes of the most frequent one. The sheet's 218 flight-and-market rows are not the rule's flights, so its months cannot be read off as the rule's consecutive months.

The monitoring dashboard export. The dashboard keys off the ArrDel15 field in the BTS data, which flags an arrival fifteen or more minutes late. Carried through, it would have us report **4 problem flights as exposed**: ATL-EWR, ATL-LGA, LAX-ATL, PHL-SJU. That is four flights further from our answer than the associate's sheet, and in the wrong direction: it reports exposure where the rule finds none. The rule's threshold is more than thirty minutes, not fifteen, so the dashboard is measuring a different and much weaker condition. Its list is useful for schedule reliability work and it is not evidence of exposure under 399.81. Note that only one of its four, ATL-EWR, is on our watch list at all.

Basis and limitations

Computed from the BTS Reporting Carrier On-Time Performance files for Frontier for each month of 2025 and for JetBlue for the control months, as supplied in this folder. Cancelled flights are treated as the rule treats them. Passengers are the T-100 Domestic Segment PASSENGERS field for the origin-to-destination segment, January to December 2025, as RS-4 defines the term. Percentages are to one decimal place, counts and passengers are whole numbers, months are YYYY-MM. Supporting detail is in exposure_register.csv and chronic_delay_timeline.png.

This memo addresses citability under 399.81 only. It is not advice on any other regulation, and a flight to watch carries no finding of violation.